[redacted]

**INQUIRY – JOINT STANDING COMMITTEE OF ELECTORAL MATTERS.**

**SUBMISSION OF LEONIE BIRD – WARDEN ST GEORGES ANGLICAN CHURCH MALVERN**

1. The Melbourne Anglican Trust Corporation is the registered proprietor of all Anglican church land in the Anglican Diocese of Melbourne, including the land occupied by St Georges Anglican Church Malvern. ("St Georges")

2. St Georges is located at 296 Glenferrie Road and is close to the intersection of Glenferrie and Road and High Street Malvern. It is close to public transport, and one of the main Malvern shopping centres. It is located next door to the Malvern Police Station and the municipal offices of the City of Stonnington. It is centrally located to act as a Voting Centre during federal and state elections.

3. Prior to the announcement of the May 2025 Federal election, a licence agreement was entered into between the Australian Electoral Commission ("AEC") and Melbourne Anglican Trust Corporation. The licenced premises was the St Georges Anglican Church Administration Centre. ("the Agreement") (See attached Schedule)

4. The relevant terms of the Agreement were –

   (a) The use the St Georges Admiration Centre is to allow the AEC, its servants and agents, to fulfill is statutory obligations pursuant to the *Commonwealth Electoral Act 1918* (Cth) including the operation of a voting centre during the 2025 Federal Election in the Federal Electorate of Kooyong.

   (b) The operating hours of this Voting Centre were to be Monday to Saturday from 6:00 am to 8:00 pm including public holidays on a weekly basis.

   (c) At that time, the exact times of the licensing period was subject to the date of the 2025 Federal election.

5. The area of the licensed premises was confined to the Administration Centre including 6 metres from the entrance of the Centre. i.e. 6 metres from the entrance to the designated Voting Centre

6. The parishioners and the parish council of St Georges were willing to allow free access to the Voting Centre across its grounds to assist voters and campaign workers.

7. Prior the commencement of the polling period, campaign organisers representing Monique Ryan informally requested permission from the church wardens to erect a marquee with the church grounds for campaign purposes. That application was denied since it would act as an unwelcome precedent for the construction of similar marquees that would impinge on the peaceful religious atmosphere of the church grounds.

8. There were no other applications or requests to install any structures or affix or install political material onto St Georges church property including its flag poles, notice boards, or church garden areas.

9. From Tuesday 22 April to Saturday 3 May 2025 the AEC supervised and assisted voters at the St Georges Voting Centre for the purposes of voter pre-polling and polling.

10. During the pre-polling period there were a number of occasions when the church property was subject to unauthorized interference. These included –

    (a) Political notices affixed to the church flag pole.

    (b) A political marquee was erected on the church grounds without permission. It was removed at the request of a church warden.

    (c) Despite the previous request to remove a political marquee, another marquee was erected within the church grounds the next day. Upon the further request of a church warden the marquee was removed.

    (d) Political notices were affixed without permission to the main church noticeboard near the front entrance on Glenferrie Road.

11. During the pre-polling period a large number of political signs were installed on church garden areas. There was no request to the church representatives for permission for those installations on the garden area.

12. Within the church grounds there is a fenced area designated as the church Memorial Garden. This area is consecrated ground in which the ashes of deceased worshipers are interred according to Anglican practice. It is clearly signposted and fenced off from the general church garden areas. At some time political signs were placed near this consecrated ground that represented an intrusion into the Memorial Garden area

13. Pursuant to s 158A *Electoral Act 2002* (Vic) the **Victorian Electoral Commission issued Determination 003/2022.** This Determination sets out some of the rules for the display of electoral notices and signs within 100 metres of a designated entrance to a voting centre. This area is known as the limited sign zone. By law the size and number of notices and signs that can be displayed with this 100 metre zone is limited. These rules apply during the opening hours of a voting centre.

14. The only notices or signs relating to an election that are allowed to be displayed within the limited sign zone during voting hours are official Victorian Electoral Commission signs and signs dis0aced by a candidate or registered political party that comply with the following rules –

    1.1.1. Each candidate can display up to 2 signs
    1.1.2. Each registered party can display up to 2 signs.
    1.1.4 Each sign must not exceed 600 x 900 mm in size.

15. Notices and signs displayed on private residences are excluded from the limited sign zone..... but may be subject to other rules applicable to private property.

It is respectfully submitted that –

16. The principles of the Victorian Determination 003/2022 should be applied to all Federal elections

17. Although St Georges is privately owned land including its Administration Centre, nonetheless, its licence with the AEC effectively renders it as a temporary official voting centre. Accordingly, it should be subject to the VEC determination that limits the use of political signage.

18. St Georges has served the community of Malvern for more than 150 years. At all times, St Georges is an Anglican place of worship. Its willingness to co-operate with the AEC as a Voting Centre is part of its community service, but should not expose St Georges and its parishioners to unauthorised intrusions onto its grounds.

19. Subsequent to the 2025 Federal election the St Georges parish council voted to establish a Code of Conduct to be applied to any individuals or organisation that is invited onto the church grounds. This may apply to election campaign volunteers when the Administration Centre is licensed to function as a Voting Centre.

Should there be any questions in relation to this submission please do not hesitate to contact me.

Leonie Bird
Warden
St Georges Anglican Church Malvern
9 November 2025.

## SCHEDULE

**Site Map of Licensed Premises, ( Australian Electoral Commission) associated Carparking Spaces and Location**

**296 Glenferrie Road, Malvern Vic 3144**

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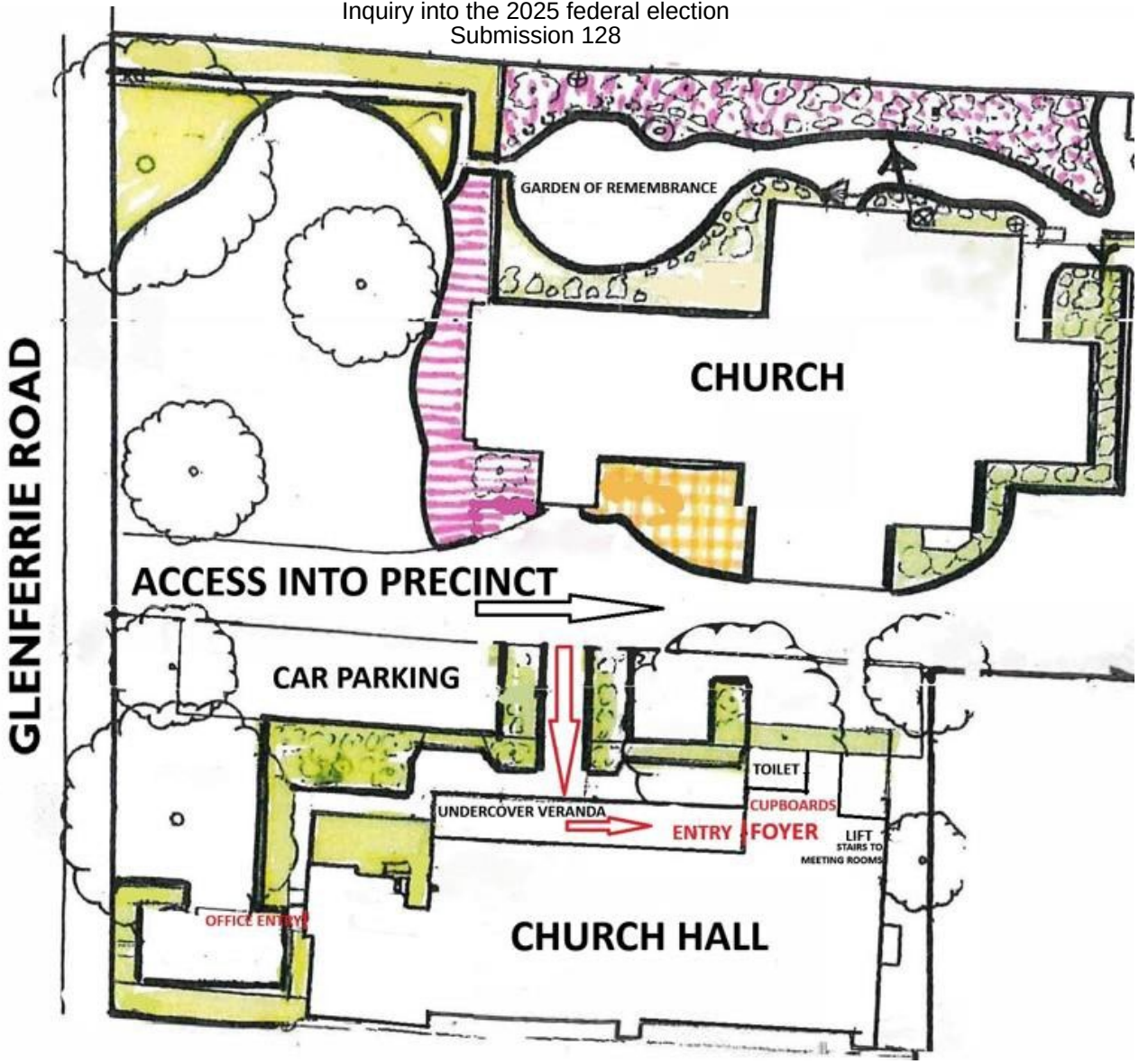
GLENFERRIE ROAD
GARDEN OF REMEMBRANCE
CHURCH
ACCESS INTO PRECINCT
CAR PARKING
TOILET
CUPBOARDS
UNDERCOVER VERANDA
ENTRY
FOYER
LIFT
STAIRS TO
MEETING ROOMS
OFFICE ENTRY
CHURCH HALL